

Participation Agreement Germany

Agreement # 4998CM0379
PA# CW2940372

EFFECTIVE DATE OF THIS PARTICIPATION AGREEMENT ("PA"): 25.10.2018. (Agreement)}

This PA between IBM Deutschland GmbH ("Buyer") and George P Johnson GmbH ("Supplier") adopts and incorporates by reference all of the terms and conditions of the Base Agreement # 4998CM0379 in effect as of the date hereof ("Base Agreement") and Statement of Work/Master Statement of Work in effect as of the date hereof ("SOW" / "Master SOW"). This PA automatically incorporates any future amendments to the Base Agreement referenced in this PA and any future amendments to the SOW/Master SOW, if referenced in this PA, and will be made a part of this PA to the extent that the amendments do not conflict with the terms of this PA unless otherwise agreed to in writing by the parties to this PA.

However, any future amendments to the SOW/Master SOW referenced in this PA which affect price and part numbers for Deliverables are automatically incorporated and made a part of this PA.

The parties to this PA agree that purchases and sales of the Deliverables, Products or Services, as defined in the Base Agreement, will be conducted in accordance with, and be subject to, the terms and conditions of this PA, the Base Agreement and any applicable Work Authorizations

AMENDMENTS: The following terms and conditions amend provisions of the Base Agreement to bring the conduct of the parties' transactions into conformity with local law and practice.

1.0 Definition of Statement of Work

The definition "Statement of Work" is amended as follows: The SOW can also be included in the Supplier's offer. Should both parties agree, the SOW in the offer can become an integral part of the contract if:
both parties agree upon the content of the related offer,
the relevant Work Authorization is referencing the related offer, and
the offer does not contain the Supplier's standard terms & conditions or their validity is explicitly excluded.

2.0 Definition of Work Authorization

The last sentence of the relevant definition of the term "Work Authorization" is amended as follows: A SOW is a WA only if designated as such in writing by Buyer and if accepted by Supplier.

3.0 Statement of Work

The following sentence is added to the end of the relevant section titled "Statement of Work": Supplier is free to accept or decline the respective WA, unless Supplier has made a binding proposal and Buyer orders in accordance with the terms and conditions of this proposal.

4.0 Warranty Period

The following subsection is added to the Section titled "Entry of the warranties": The warranty term for the Products is 24 months from the date of the acceptance of the Products. If Supplier supplies Deliverables which Buyer owes to a third party, and this is apparent to Supplier, the warranty period shall commence upon acceptance of the Deliverables by the third party. Any defects, of which Buyer is notified by the third party before the end of the warranty period, shall be corrected in this case by Supplier at his own expense, provided Buyer has notified Supplier of the defects within a reasonable period of time.

5.0 Intellectual Property

If any Developed Works are not owned by Buyer by operation of law, Supplier grants buyer an exclusive, worldwide, perpetual, irrevocable license to prepare and have prepared Derivative Works of Developed Works, and to use, have used, execute, reproduce, transmit, display, perform, transfer, distribute and sublicense Developed Works and such Derivative Works, in any medium or distribution technology, and to grant others the rights granted herein.

6.0 Limitation of Liability between Supplier and Buyer

The following sentence is added to Subsection 11.0: The limitation of liability shall not apply for loss or damage caused by a breach of a guarantee assumed in connection with any transaction under this Agreement, for bodily injuries, or for damages caused intentionally or by gross negligence.

7.0 Asset Control

The following list item (6) is added to the Subsection "Asset Control":

6. will use any computer equipment of AG to which AG is providing access for the fulfillment of the contractual obligations solely for the fulfillment of the respective contractual obligation; any private use is forbidden.

8.0 Termination of a SOW or WA

The following provision replaces the first sentence of the Subsection "Termination of a SOW or WA" of the referenced Base Agreement: Buyer may terminate a SOW or a WA with Cause effective immediately or without Cause on fourteen (14) days written notice.

9.0 Assignment

The following provisions replace the provisions of the Subsection "Assignment": Buyer may assign the rights or delegate or subcontract the duties agreed upon in this Agreement in whole or in part to any of its affiliates. However neither party will assign their rights or delegate or subcontract their duties under this Agreement to other third parties without the prior written consent of the other party, such consent not to be withheld unreasonably, except that Buyer may assign this Agreement in conjunction with the sale of a substantial part of its business utilizing this Agreement or any intellectual property assigned or licensed under this Agreement. Any unauthorized assignment of this Agreement is void.

10.0 Choice of Law and Forum; Waiver of Jury Trial; Limitation of Action

The relevant provision concerning Choice of Law and Forum is replaced by the following: The parties hereby agree on German law and submit to the non-exclusive jurisdiction of the Stuttgart courts, provided that Buyer shall also be authorized to sue before the courts competent for any of its branch offices in Germany. The United Nations Convention for the International Sale of Goods does not apply.

The following provisions replace the last sentence of the Subsection "Choice of Law and Forum; Waiver of Jury Trial; Limitation of Action": Any claims resulting from this Base Agreement are subject to a statute of limitation of three years, except as stated in the warranty section or unless mandatory statutory law without the possibility of contractual waiver or limitation provides otherwise.

11.0 Obligations of Affiliates

The provisions of subsection "Obligations of Affiliates" will not apply.

12.0 Self-employment

The following new section is added: Supplier agrees to inform Buyer on his own initiative about any facts that could lead to the assumption of pretended self-employment according to art. 7 IV SGB IV. Supplier confirms to Buyer that he has made necessary arrangements according to art. 7a VI 1 Nr. 2 SGB IV against the financial risks in case of illness and for his pension which are equivalent to the benefits of the legal medical insurance and social security scheme. If decision of the BfA (federal institution of insurance for employees), which will be applied for within one month after start of work, should lead to an assessment of a employment relationship with compulsory social insurance, Buyer is entitled to immediately terminate the respective WA and to cancel this agreement. In case of retrospective compulsory social insurance, Buyer may at his option execute the right according to art. 28g SGB IV and/or claim compensation/indemnification.

13.0 Data Privacy

Supplier is obliged to inform the data subject of his right of objection referring to the use of his data for purposes of advertising or of market or opinion research that he is carrying out for Buyer.

Buyer and its Affiliates, and their contractors and subprocessors, may, wherever they do business, store and otherwise process business contact information (BCI) of Supplier, its Personnel and authorized users, for example, name, business telephone, address, email, and user ID for business dealings with them. Where notice to or consent by the individuals is required for such processing, Supplier will notify and obtain such consent.

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14.0 Processing of Data by Order:

Where the Supplier comes in contact with and is processing personal data on behalf of IBM or of the Customers "Supplier Data Processing Agreement" will apply.

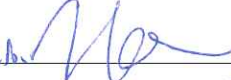
15.0 Prior Communications and Order of Precedence

The following provisions replaces the provisions of the Subsection "Order of Precedence": This Agreement replaces any prior oral or written agreements or other communication between the parties with respect to the subject matter of this Agreement, excluding any confidential disclosure agreements. In the event of any conflict in these documents, the order of precedence will be:

1. the quantity, payment and delivery terms of the relevant WA;
2. the relevant SOW;
3. the PA
4. this Base Agreement; and
5. the remaining terms of the relevant WA.

ACCEPTED AND AGREED TO:

IBM Deutschland GmbH

By: 

15.11.2018.

Buyer Signature

Date

Gergo Horvath

TIMSA ZAKAI

Printed Name

Sourcing Buyer

Title & Organization

Buyer Address:
IBM Allee 1.
71137 Ehningen
Germany

ACCEPTED AND AGREED TO:

George P. Johnson GmbH

By: 

Ruit, 29.10.2018

Supplier Signature

Date

Robin Heim

Printed Name

VP Commercial Director

Title & Organization

Supplier Address:
Max Eyth Strasse 1
Ostfildern Ruit
BW
73760
Germany